

Shashank Agarwal v. State of U.P.

Allahabad High Court · Division Bench · 25 September 2019 · Writ-C No. 31167 of 2019 · **Connected with Writ-C 4545/2019; interim tariff rider.**

HEADNOTE

A writ challenging the Electricity Supply Code 13th Amendment 2018 as ultra vires the Electricity Act, 2003 was connected with already-pending Writ-C No. 4545 of 2019, whose operating order was made applicable, subject to the petitioner charging occupants of multi-storey towers only the tariff under the applicable tariff order for electricity supplied through him by the licensee. Pleadings were directed; the vires issue was not decided.

FACTUAL SUMMARY

Shashank Agarwal invoked Article 226 to challenge the Electricity Supply Code 13th Amendment, 2018, framed by the Regulatory Commission, as ultra vires the Electricity Act, 2003. Electricity obtained from the licensee was being supplied through him to occupants of flats in multi-storey towers. Counsel for the parties stated that the same vires issue was already pending in Writ-C No. 4545 of 2019 (M/s Maxblis Construction Pvt. Ltd. v. State of U.P.).

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

connect companion Supply Code amendment vires writ; interim tariff rider

HOLDING

Where a writ challenging the Electricity Supply Code 13th Amendment 2018 as ultra vires the Electricity Act, 2003 is already pending, a later petition raising the same issue is connected and the earlier operating order is made applicable, with the rider that the petitioner shall charge occupants of multi-storey towers only the tariff under the applicable tariff order for electricity supplied through him by the licensee. Counter and rejoinder directed; list with Writ-C No. 4545 of 2019. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY SUPPLY CODE 13TH AMENDMENT 2018 IS ULTRA VIRES THE ELECTRICITY ACT, 2003

Issue already pending in Writ-C No. 4545 of 2019; petitions connected without deciding vires. ¶ 1